

OgmentorID

Master Terms of Service & Acceptable Use Policy

PLEASE READ CAREFULLY. SECTION 8 CONTAINS A BINDING ARBITRATION AGREEMENT AND CLASS ACTION WAIVER. SECTION 4 CONTAINS SEVERE PENALTIES FOR CYBER-ATTACKS AND SYSTEM ABUSE.

1. Acceptance & Age Restriction

By accessing OgmentorID, you legally bind yourself to these Terms. You must be 18 years or older to use the Service.

2. Strict Disclaimer: Not Medical or Psychological Advice

OgmentorID is a professional coaching and cognitive assessment tool. **IT IS NOT A CLINICAL EVALUATION, PSYCHIATRIC DIAGNOSTIC TOOL, OR MEDICAL DEVICE.** The archetypes and metrics generated must not be used to diagnose or treat any mental health condition. We are strictly shielded from liability regarding any psychological distress, employment termination, or interpersonal issues arising from the use of this Service.

3. Intellectual Property & Reverse Engineering Ban

All algorithms, logic frameworks (Layer 1, 2, and 3), archetype names, scoring matrices, designs, and logos are the exclusive, legally protected property of OgmentorID. You are granted a limited license for personal use only. You explicitly agree not to decompile, reverse-engineer, or attempt to derive the source code or proprietary weighting mechanics of our assessments.

4. System Integrity, Anti-Scraping & Cyber-Attack Defenses

We maintain a zero-tolerance policy against attacks on our infrastructure. You explicitly agree that you will not:

- Deploy automated bots, spiders, or scrapers to extract data, archetype results, or UI elements from the Service.
- Submit "adversarial inputs," synthetic data, or automated bulk responses intended to poison, manipulate, or test our machine learning models.
- Attempt DDoS attacks, API abuse, SQL injection, or unauthorized penetration testing.

Liquidated Damages for Attacks: Because quantifying the exact damage of a cyber-attack or algorithm theft is difficult, you agree that any violation of this section entitles OgmentorID to seek

liquidated damages of no less than \$10,000 USD per unauthorized API request, bot execution, or data poisoning attempt, alongside immediate injunctive relief.

5. Exemption for Advanced Cyber Threats (Force Majeure)

While we implement rigorous security standards, OgmentorID shall bear zero liability for data breaches or service interruptions resulting from events beyond our commercially reasonable control, including but not limited to zero-day exploits, state-sponsored cyber-attacks, advanced persistent threats (APTs), or catastrophic failures of third-party cloud infrastructure.

6. Waiver of Unknown Claims (California Civil Code § 1542)

You explicitly waive California Civil Code § 1542, which states: "**A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY.**"

7. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT SHALL OGMENTORID BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES. OUR TOTAL CUMULATIVE LIABILITY SHALL NOT EXCEED THE GREATER OF THE FEES PAID BY YOU IN THE PAST 12 MONTHS OR \$100 USD. THIS LIMITATION APPLIES TO ALL LEGAL THEORIES, WHETHER IN CONTRACT, TORT, OR OTHERWISE.

8. Dispute Resolution: Arbitration & Class Action Waiver

- **Arbitration:** Any dispute shall be resolved by binding individual arbitration administered by the American Arbitration Association (AAA).
- **Small Claims & Public Injunctive Relief:** Consistent with California law (the McGill rule), you retain the right to seek public injunctive relief in a court of competent jurisdiction.
- **Class Action Waiver:** YOU AGREE TO BRING CLAIMS ONLY IN YOUR INDIVIDUAL CAPACITY AND NOT AS A CLASS MEMBER.
- **30-Day Opt-Out:** You may opt out of this arbitration agreement by emailing our legal department within 30 days of account creation.

9. California Consumer Rights Notice

Under California Civil Code Section 1789.3, California users are entitled to the following notice: The Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs may be contacted in writing at 1625 North Market Blvd., Suite N 112, Sacramento, CA 95834.